

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caroline Moses	Team: Squad #13	CCRB Case #: 201904913	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/05/2019 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/22/2021	Precinct: 120		
Date/Time CV Reported Thu, 06/06/2019 4:58 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/06/2019 4:58 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DTS Rudy Anzalone	5617	945472	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Frank Desiderato	13351	936473	120 PCT
2. DTS Steven Lopez	4354	943498	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Rudy Anzalone	Abuse: Detective Rudy Anzalone entered § 87(2)(b), in Staten Island.	A . Exonerated
B . DTS Rudy Anzalone	Abuse: Detective Rudy Anzalone searched § 87(2)(b), in Staten Island.	B . Exonerated

Case Summary

On June 6, 2019, § 87(2)(b) called the CCRB and filed this complaint on behalf of § 87(2)(b). § 87(2)(b) is a non-witnessing complainant; she is § 87(2)(b)'s care coordinator.

On June 5, 2019, at approximately 6 a.m., § 87(2)(b) was asleep at his home at § 87(2)(b), in Staten Island when Detective Rudy Anzalone, Detective Steven Lopez, Police Officer Frank Desiderato, all of the 120th Precinct, and several ESU officers executed a search warrant at § 87(2)(b) apartment (**Allegations A and B: Abuse of Authority, exonerated**) [Board Review 01]. As a result of this incident, § 87(2)(b) received a summons for possession of marijuana [Board Review 02]. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Body-worn camera footage from Detective Rudy Anzalone, Detective Steven Lopez, Police Officer Frank Desiderato, Police Officer Mohammed Suleiman, and Police Officer Hasan Javaid, all of the 120th Precinct, captured this incident [Board Review 03-07].

Findings and Recommendations

Allegation (A) Abuse: Detective Rudy Anzalone entered § 87(2)(b) in Staten Island.

Allegation (B) Abuse: Detective Rudy Anzalone searched § 87(2)(b) in Staten Island.

It is undisputed that officers entered and searched the side apartment at § 87(2)(b) in Staten Island. Search warrant § 87(2)(b) issued by § 87(2)(b) authorized entry of § 87(2)(b) for officers to search for firearms, ammunition, and any records or paperwork that might suggest the presence of firearms, as well as phones that might be used for the sale of firearms. The warrant authorized entry without prior notice at any time of the day or night within ten days of its issuance on § 87(2)(b) [Board Review 08].

Article 690.50 of the New York State Criminal Procedure Law [Board Review 09] permits officers who have obtained a valid judge-issued warrant to enter and search a location.

§ 87(2)(g)

§ 87(2)(b) it is recommended that Allegations A and B be closed as **exonerated**.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party [Board Review 10].
- This is the first complaint to which § 87(2)(b) has been a party [Board Review 11].
- Det. Anzalone has been a member of the NYPD for 11 years and has been the subject in 12 complaints and 29 allegations, of which 1, an allegation of an improper stop (CCRB# 201702888), was substantiated. In 201702888, the Board recommended Command Discipline B and the NYPD disposition was formalized training.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date